

LAST WILL AND TESTAMENT

OF

KIMANI CLARK

I, **KIMANI CLARK**, a resident of the State of Maryland, do hereby make, publish and declare this to be my Last Will and Testament, and do hereby revoke all other Wills, Testaments and Codicils that I have heretofore made.

ARTICLE ONE

Debts, Expenses and Certain Legacies

A. I direct my Personal Representative to pay the expenses of my last illness, burial and monument as soon after my death as may be practicable, and I further direct that my Personal Representative shall have absolute discretion as to the cost of my funeral and monument without regard to any statutory limitation of the amount.

B. I authorize my Personal Representative to pay all the debts which my estate shall be legally obligated to pay and administration expenses, except that the payment of any debt secured by a mortgage, pledge or other encumbrance on property owned by me at my death shall be within the sole discretion of my Personal Representative so that such property may pass subject to such mortgage, pledge or other encumbrance.

C. All inheritance, estate and succession taxes payable by reason of my death, irrespective of whether said taxes do or do not arise by reason of property passing under this Will, shall be paid out of and charged generally against the principal of my residuary estate as an expense of administration.

ARTICLE TWO

Distribution of Tangible Personal Property

A. I have prepared a Memorandum directing the disposition of my personal property, and I direct that my Personal Representative distribute said property pursuant thereto. To the extent that there are items not covered in said Memorandum or if said Memorandum cannot be located, then I give and bequeath

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all the rest of my articles of tangible and intangible personal property that I may own at my death, if any, and my wearing apparel, personal effects and jewelry, together with all insurance policies on the aforesaid property, to my brother, **CHAD CLARK**, if living, otherwise to his children to be divided on a substantially equivalent basis as they may agree. If my nieces and nephews are unable to agree among themselves within six (6) months after my death, my Personal Representative shall have the power and authority in his or her sole discretion to determine a fair and equitable division of my personal property amongst them.

B. If any of the personalty bequeathed in the foregoing clause of this my Will vests in a minor, I authorize my Personal Representative to deliver such personalty to the minor at such time or times as my Personal Representative may deem advisable, notwithstanding the fact that the legatee is a minor; and my Personal Representative may do so without any liability whatsoever for making such delivery. My Personal Representative is also authorized, in the case of a minor, to sell any or all such tangible property which may not be suitable for distribution to a minor and to distribute the proceeds as part of my residuary estate.

ARTICLE THREE

Distribution of Balance of the Estate

I give, devise and bequeath all the rest, residue and remainder of my property (hereinafter referred to as my "residuary estate"), both real and personal, wheresoever situate, whether now owned or hereafter acquired by me, as follows:

A. Eight percent (80%) to the **CHAD CLARK TRUST** for the benefit of my brother, **CHAD CLARK**, to be administered according to the provisions of Article Four hereof. In the event **CHAD CLARK** fails to survive me, said share shall be distributed to the **CHAD CLARK CHILDREN'S TRUST** to be administered according to the provisions of Article Five hereof; and

B. Twenty percent (20%) to the **CHAD CLARK CHILDREN'S TRUST** for the benefit of the children of **CHAD CLARK** to be administered according to the provisions of Article Five hereof.

ARTICLE FOUR

Chad Clark Trust

My Trustee shall hold the share as finally determined for the benefit of my brother, **CHAD CLARK**, as follows:

A. My Trustee shall have the power to pay to, or apply for the benefit of, **CHAD CLARK** such portions of the net income and principal of this Trust, as my Trustee, in his or her sole discretion, shall from time to time deem necessary and appropriate for the health, maintenance, support and education of **CHAD CLARK**. In the event there is an Independent Trustee then-serving, said Independent Trustee may authorize a distribution of principal to **CHAD CLARK** as the Independent Trustee determines is in his best interests.

B. Upon the death of **CHAD CLARK**, the then remaining balance of the principal and any accumulated and accrued income of the Trust heretofore held for his benefit shall be over and distributed absolutely to or for the creditors of **CHAD CLARK**, and upon such terms and conditions, if any, as **CHAD CLARK**, by a provision in his Will expressly referring to this Article of this Last Will and Testament, shall validly direct and appoint, or to the extent that **CHAD CLARK** shall fail so expressly and so validly to direct and appoint to the **CHAD CLARK CHILDREN'S TRUST** to be administered according to the provisions of Article Five hereunder.

ARTICLE FIVE

Chad Clark Children's Trust

My Trustee will divide the trust fund into as many separate equal shares as are required to provide one share for each of my brother, **CHAD CLARK's**, then living children and one share for the then living issue, to be divided *per stirpes*, of each niece or nephew of mine; provided that, each share shall be distributed to my Trustee, named hereinafter IN TRUST NEVERTHELESS, to be held in a separate Trust as follows:

A. During the continuance of each trust held by the Trustee and so

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long as a beneficiary has not attained the age of twenty-one (21) years, my Trustee may, within his or her sole and absolute discretion, either accumulate the net income arising from such trust, or may distribute so much of the net income thereof, which they deem necessary or advisable for the benefit of said beneficiary for his or her health, maintenance, support and education. In addition, my Trustee may, in his or her sole discretion, make advancements of net income to said beneficiary for the purpose of going on school trips, extracurricular activities or other educational endeavors. Such advancements are to be made for such purposes and in such amounts, as the Trustee, in his or her sole discretion, shall deem advisable taking into consideration the size of the Trust and the possible future needs of said beneficiary;

B. After a beneficiary has attained the age of twenty-one (21) years, my Trustee shall distribute to said beneficiary for his or her benefit, in at least quarterly or more frequent installments, all of the net income arising from his trust;

C. My Trustee shall have the power to pay to, or apply for the benefit of, said beneficiary such portions of the principal of his or her Trust, as my Trustee, in his or her sole discretion, shall from time to time deem necessary and appropriate for the health, maintenance, support and education of said beneficiary. In addition, my Trustees may, in their sole discretion, make advancements of principal to said beneficiary for the purpose of going into business, acquiring a home, or getting married. In the event there is an Independent Trustee then-serving, said Independent Trustee may authorize a distribution of principal to a beneficiary as the Independent Trustee determines is in his or her best interests. Such advancements are to be made for such purposes and in such amounts, as the Trustee, in his or her sole discretion, shall deem advisable taking into consideration the size of the Trust and the possible future needs of said beneficiary;

D. Upon the death of said beneficiary, the then remaining balance of

the principal and any accumulated and accrued income of the Trust heretofore held for his or her benefit shall be paid over and distributed absolutely to or for the use or benefit of such one or more persons (including, without limiting the generality of the foregoing, the estate of such deceased beneficiary), and upon such terms, conditions and trusts, if any, as such deceased beneficiary, by a provision in his or her Will expressly referring to this Article of this Last Will and Testament, shall validly direct and appoint, or to the extent that such deceased beneficiary shall fail so expressly and so validly to direct and appoint to his or her then-living issue, *per stirpes*. In the event that there shall be no such issue then surviving, the principal shall be distributed to the beneficiary's siblings, *per stirpes*, provided, however, that a share so distributed to a beneficiary for whose benefit a Trust is then in existence hereunder, shall be added to such Trust and administered as part thereof. In addition, any share to be distributed to a beneficiary for whose benefit a Trust is not then in existence hereunder, his or her share shall be retained in trust, subject to similar terms and conditions as set forth above;

E. In the event that any portion of my estate remaining in the hands of the Personal Representative or Trustee shall be undisposed of or not be validly distributable under the foregoing provisions of this my Last Will and Testament, the Personal Representative shall grant, convey, pay over and deliver, absolutely free and clear of any trust, such property to the **LEROY CLARK TRUST** to be administered according to the provisions of Article Six hereunder for the benefit of my father, **LEROY CLARK**. If **LEROY CLARK** shall fail to survive me, this bequest shall lapse and said share shall be distributed as follows:

1. Fifty percent (50%) to the issue of **DAMON JORDON**, *per stirpes*; provided, however, any share for a beneficiary who has not attained the age of twenty-five (25) shall be held IN TRUST according to Article Seven hereof; and

2. Fifty percent (50%) to the issue of **CASEY**

HOLLINGSWORTH, *per stirpes*; provided, however, any share for a beneficiary who has not attained the age of twenty-five (25) shall be held IN TRUST according to Article Seven hereof.

ARTICLE SIX

Leroy Clark Trust

My Trustee shall hold the share as finally determined for the benefit of my father, **LEROY CLARK**, as follows:

A. My Trustee shall have the power to pay to, or apply for the benefit of, **LEROY CLARK** such portions of the net income and principal of this Trust, as my Trustee, in his or her sole discretion, shall from time to time deem necessary and appropriate for the health, maintenance, and support of **LEROY CLARK**. In the event there is an Independent Trustee then-serving, said Independent Trustee may authorize a distribution of principal to **LEROY CLARK** as the Independent Trustee determines is in his best interests.

B. Upon the death of **LEROY CLARK**, the then remaining balance of the principal and any accumulated and accrued income of the Trust heretofore held for his benefit shall be over and distributed absolutely to the creditors of his estate, as **LEROY CLARK**, by a provision in his Will expressly referring to this Article of this Last Will and Testament, shall validly direct and appoint, or to the extent that **LEROY CLARK** shall fail so expressly and so validly to direct and appoint, said balance shall be distributed as follows:

1. Fifty percent (50%) to the issue of **DAMON JORDON**, *per stirpes*; provided, however, any share for a beneficiary who has not attained the age of twenty-five (25) shall be held IN TRUST according to Article Seven hereof; and

2. Fifty percent (50%) to the issue of **CASEY HOLLINGSWORTH**, *per stirpes*; provided, however, any share for a beneficiary who has not attained the age of twenty-

five (25) shall be held IN TRUST according to Article Seven hereof.

ARTICLE SEVEN

Trust for Beneficiary Under Twenty-five

My Trustee will hold its share to be administered according to the provisions of this Article in a separate Trust as follows:

A. During the continuance of each trust held by the Trustee and so long as a beneficiary has not attained the age of twenty-one (21) years, my Trustee may, within his or her sole and absolute discretion, either accumulate the net income arising from such trust, or may distribute so much of the net income thereof, which they deem necessary or advisable for the benefit of said beneficiary for his or her health, maintenance, support and education. In addition, my Trustee may, in his or her sole discretion, make advancements of net income to said beneficiary for the purpose of going on school trips, extracurricular activities or other educational endeavors. Such advancements are to be made for such purposes and in such amounts, as the Trustee, in his or her sole discretion, shall deem advisable taking into consideration the size of the Trust and the possible future needs of said beneficiary;

B. After a beneficiary has attained the age of twenty-one (21) years, my Trustee shall distribute to said beneficiary for his or her benefit, in at least quarterly or more frequent installments, all of the net income arising from his trust;

C. My Trustee shall have the power to pay to, or apply for the benefit of, said beneficiary such portions of the principal of his or her Trust, as my Trustee, in his or her sole discretion, shall from time to time deem necessary and appropriate for the health, maintenance, support and education of said beneficiary. In addition, my Trustees may, in their sole discretion, make advancements of principal to said beneficiary for the purpose of going into business, acquiring a home, or getting married. In the event there is an Independent Trustee then-

serving, said Independent Trustee may authorize a distribution of principal to a beneficiary as the Independent Trustee determines is in his or her best interests. Such advancements are to be made for such purposes and in such amounts, as the Trustee, in his or her sole discretion, shall deem advisable taking into consideration the size of the Trust and the possible future needs of said beneficiary;

D. My Trustee shall distribute outright and free of trust the entire balance of the trusts estate upon a beneficiary attaining the age of twenty-five (25).

E. Upon the death of said beneficiary, the then remaining balance of the principal and any accumulated and accrued income of the Trust heretofore held for his or her benefit shall be paid over and distributed absolutely to or for the use or benefit of such one or more persons (including, without limiting the generality of the foregoing, the estate of such deceased beneficiary), and upon such terms, conditions and trusts, if any, as such deceased beneficiary, by a provision in his or her Will expressly referring to this Article of this Last Will and Testament, shall validly direct and appoint, or to the extent that such deceased beneficiary shall fail so expressly and so validly to direct and appoint to his or her then-living issue, *per stirpes*. In the event that there shall be no such issue then surviving, the principal shall be distributed to the beneficiary's siblings, *per stirpes*, provided, however, that a share so distributed to a beneficiary for whose benefit a Trust is then in existence hereunder, shall be added to such Trust and administered as part thereof. In addition, any share to be distributed to a beneficiary who has not attained the age of twenty-five and for whose benefit a Trust is not then in existence hereunder, his or her share shall be retained in trust, subject to similar terms and conditions as set forth above.

ARTICLE EIGHT

Interest Vesting in a Minor Beneficiary

Notwithstanding anything herein contained to the contrary, whenever pursuant to the provisions of this instrument all or any part of the principal of a trust

shall vest in absolute ownership in an individual (other than a child of mine) who has not yet attained age twenty-one (21), the Trustees are authorized and empowered in their uncontrolled discretion, to hold the property so vested in such individual, notwithstanding that any such property may consist of investments not authorized by law for trust funds, and to invest and reinvest the same, collect the income therefrom, and to apply so much of the net income and principal thereof to the support, health, education and maintenance of such individual as the Trustees deem fit, and to accumulate, invest and reinvest the balance of the income until such individual shall attain the age of twenty-one (21), and thereupon to pay over the principal, together with any accumulated and undistributed income, to such individual and, if such individual shall die before attaining age twenty-one (21), the principal, together with any accumulated and undistributed income, shall be paid over to the estate of such individual. The authority conferred upon the Trustees by this paragraph shall be construed as a power only, and shall not operate to suspend the absolute vesting thereof in such individual. With respect to the administration of any such property which shall vest in absolute ownership in an individual, and which shall be held by the Trustees as authorized in this paragraph, the Trustees shall have all the powers vested in them under the provisions of this Will.

ARTICLE NINE

Appointment of Personal Representative and Trustee

A. I appoint my **CHAD CLARK** to serve as Personal Representative of my estate. In the event that **CHAD CLARK** shall fail to survive me or cease to serve for any reason, then I appoint **BRYAN STEINER** to serve as Personal Representative of my estate. If **BRYAN STEINER** shall fail to survive me or cease to serve for any reason, I appoint **VIJAY LATHI** to serve as Personal Representative of my estate.

B. I appoint **CHAD CLARK** to serve as Trustee of the **CHAD CLARK TRUST** administered under Article Four hereof. If he shall fail or cease to serve, I appoint **BRYAN STEINER** to serve as Successor Trustee of said Trust. In

the event **BRYAN STEINER** shall fail or cease to serve, I appoint **VIJAY LATHI** to serve as Successor Trustee of said Trust. I appoint **BRYAN STEINER** to serve as Trustee of any sub-trusts which come into existence under the terms of Article Five or Article Six of this Will. In the event that **BRYAN STEINER** shall fail to survive me or cease to serve for any reason, then I appoint **VIJAY LATHI** to serve as Successor Trustee. To the extent a trust is established for a beneficiary under the terms of Article Seven hereof, I appoint the surviving parents of the beneficiary for whose benefit the trust is established to serve as Trustee(s) of said trust.

C. Any Trustee may, from time to time, delegate to any other Trustee by written instrument any or all of such Trustees' powers (except those, if any, not exercisable by such other Trustee). Such delegation may be temporary or permanent, and if temporary, may be for any duration of time or until any event specified by the delegating Trustee. Any person dealing in good faith with any Trustee may rely without inquiry upon the Trustee's certificate with respect to any delegation.

D. The individual Trustee or Trustees of any trust hereunder may from time to time appoint one or more individuals and/or, if no corporate Trustee is serving, a bank or trust company as Co-Trustee or Co-Trustees. In the event there is no named successor trustee of any trust hereunder, any individual Trustee may while serving in that capacity appoint a bank or trust company or an individual, provided, however, that such individual shall be a person other than someone who is, directly or indirectly, a beneficiary under this Trust or a related or subordinate party to succeed his office as Trustee of such trust upon his death, resignation or incapacity.

E. No Trustee shall be required to provide surety or other security on a bond.

F. Any Trustee may resign by giving written notice, specifying the resignation's effective date to the designated successor Trustee, if there is one. If there is no one designated as successor Trustee, a resigning Trustee shall give

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such notice to each adult beneficiary of the current trust income, to a custodial parent of each minor beneficiary of current trust income, and to the legal guardian of any beneficiary of current trust income having a legal guardian, each determined at the time such notice is given. If no successor Trustee is named in paragraph B, an Independent Trustee, a person other than someone who is, directly or indirectly, a beneficiary under this Trust or a related or subordinate party, or a corporation authorized to render trust services shall be named successor Trustee by majority vote of the income beneficiaries, with the adult beneficiaries voting on their own behalf, one (1) vote being cast for each minor income beneficiary by his or her custodial parent, and one (1) vote being cast by the legal guardian for any beneficiary having a legal guardian. For purposes of this article, the right to receive "support" from the trust is a right to current trust income.

G. No Trustee shall be required to obtain the order of any court to exercise any power or discretion under this trust.

H. No Trustee shall be required to file any accounting with any public official. The Trustees must, however, maintain accurate records concerning the trust. Each year, furthermore, the Trustees shall furnish an annual accounting of the trust's condition, including receipts and disbursements to each adult beneficiary of the current trust income, to a custodial parent of each minor beneficiary of current trust income, and to the legal guardian of any beneficiary of current trust income having a legal guardian, each determined at the time such notice is given. This required accounting may be satisfied by a copy of the trust's federal income tax return, if one is required.

I. Notwithstanding any provision of this Trust to the contrary, no Trustee shall have or participate in the exercise of any discretionary power with respect to the payment of income or principal: (1) to himself, unless such power is limited to an ascertainable standard; (2) to any person whom such Trustee is legally obligated to support, if such payment would discharge his legal obligation

to support such person; and (3) to any person, if such payment would constitute a taxable gift from such Trustee.

J. If at any time, with respect to any trust hereunder, there should be no individual serving as Independent Trustee, the individual Trustee or Trustees of such trust, or if no individual Trustee shall then be serving, a majority of the beneficiaries of such trust to whom income or principal is then required or permitted to be distributed and who are then *sui juris* (or guardian if any should be a minor) shall have the right to appoint an individual or a bank or trust company to serve as an Independent Trustee of such trust.

K. A Trustee is "disabled" or under a "disability" whenever any Trustee other than a disabled Trustee or, if there is no such Trustee, any person who would become successor Trustee on such determination of disability, receives written certification from two (2) physicians regularly attending the Grantor or Trustee (as the case may be), at least one (1) of whom is board-certified in the specialty most closely associated with the alleged disability, that such person has become physically or mentally incapacitated, regardless of cause and regardless of whether or not there has been any adjudication of incompetence, mental illness, or need for a committee, conservator, guardian, or other personal representative. A Trustee is recovered from his or her disability whenever the then-serving Trustee receives written certification from two (2) physicians regularly attending such disabled person, at least one (1) of whom is board-certified in the specialty most closely associated with the alleged disability, that he or she is no longer incapacitated and is again able to manage his or her own personal and financial affairs. No Trustee is liable to anyone for removing any other person from the trusteeship, if the Trustee relied in good faith on the aforementioned physicians' certifications. No one else is liable to any person for dealing with a Trustee other than the one removed for disability, if such removal was made upon good faith reliance on the aforementioned physicians' certifications.

ARTICLE TEN

Personal Representative and Trustee Powers

I expressly authorize my Personal Representative with respect to my estate and my Trustees with respect to the trust estate (if the trust provision takes effect), in addition to and not in limitation of the powers conferred upon each elsewhere in this Will and by law, as follows:

A. My Personal Representative with respect to my estate and my Trustees with respect to the trust estate to sell, with or without notice, at public or private sale, exchange, lease (for terms which may extend beyond the termination of the administration of my estate or any trust created hereby), rent, assign, transfer or otherwise dispose of all or any part of the properties (including real properties) constituting the estate upon such terms, cash or credit, or both, as my Personal Representative shall deem to be in the best interest of my estate and as my Trustees shall deem to be in the best interest of the trust estate.

B. My Personal Representative to retain in my estate and my Trustees to retain in the trust estate any property, real or personal, or interest in any property, irrespective of whether such property produces income and even though such property or interest in property would not be considered appropriate for a fiduciary to retain absent this provision.

C. My Personal Representative with respect to my estate and my Trustees with respect to the trust estate to demand, receive, receipt for, sue for and collect any and all rights, properties and claims to which my estate or the Trust established herein is or may become entitled; and to compromise, settle, arbitrate or abandon any such claims.

D. My Personal Representative with respect to the estate to determine in its absolute discretion, and my Trustees with respect to the trust to determine in their absolute discretion, whether to distribute the properties of my estate or of my Trust as established herein, in kind, or in money, or partly in both, including undivided interests, even though shares be composed differently, and allocate particular assets or portions thereof to any one or more of the beneficiaries hereunder, without regard to the income tax basis of such assets.

E. My Personal Representative to nominate one or more ancillary administrators of my estate, to serve in any state in which appointment of such administrator or administrators shall be necessary or desirable.

F. I hereby ratify and confirm all of my partnership and joint venture agreements as existing at the time of my death and direct my Personal Representative to perform and carry into effect the provisions thereof affecting my estate, including the continuation of the business of said partnerships or joint ventures after my death and the sale, if required, of my interest therein to surviving partners or venturers.

G. My Personal Representative with respect to my estate and my Trustees with respect to the Trust to borrow money for any purpose in connection with the administration of the estate or Trust and to execute mortgages or deeds of trust and notes.

H. My Personal Representative with respect to my estate and my Trustees

with respect to the Trust to employ attorneys, accountants, clerical assistance or any other service, including investment counsel, that my Personal Representative or Trustees, in their discretion, may determine are needed for the proper administration of this estate or Trust.

I. My Personal Representative with respect to my estate and my Trustees with respect to the Trust to participate in the conduct of any business and to take or delegate to others discretionary power to take any action with respect to its affairs that an individual could take as owner of a business, including the voting of stock (in person or by proxy) and the determination of all questions of policy.

J. My Personal Representative with respect to my estate and my Trustees with respect to the Trust, to retain, invest and reinvest all or any part of the estate or trust in such common or preferred stocks, common trust funds, bonds, debentures, mortgages, deeds of trust, notes or other securities, investments and businesses which the Personal Representative or Trustees, in their absolute discretion, may select or determine, it being my express desire and intention that said Personal Representative or Trustees shall have full power to retain, invest and reinvest the funds as I might do, if living, without being restricted to those forms of investment that fiduciaries are permitted by law to make and retain without any requirements as to diversification of investments, and to hold securities in bearer form or registered in the name of nominee or corporate fiduciary.

K. My Personal Representative with respect to my estate and my Trustees with respect to the Trust, in their absolute discretion, to apportion between income and principal any receipts or disbursements which in their opinion should be so apportioned, and the Personal Representative and Trustees shall be the sole judges as to such apportionment.

L. My Personal Representative to determine whether my estate shall be valued under the optional provisions of the federal estate tax laws and what elections shall be exercised and what proceedings shall be undertaken to complete the ascertainment of the federal estate tax in my estate, and to determine in its absolute discretion whether any item of expense connected with the administration of my estate shall be claimed as a deduction for income tax purposes or claimed instead as a deduction for estate tax purposes. My estate shall exonerate my Personal Representative from personal liability for exercising this authority, even though the manner in which such election is exercised shall result in an advantage or disadvantage to any beneficiary as compared to any other beneficiary.

M. No person dealing with the Personal Representative or the Trustees shall be obligated to inquire as to their powers or to see to the application of any money or property delivered to them.

N. No Personal Representative or Trustee shall be required to give bond.

O. My Personal Representative with respect to my estate and my Trustees with respect to my Trust to construct, improve, repair or demolish all or any part of the properties constituting my estate or any trust created hereby.

P. My Personal Representative with respect to my estate and my Trustees with respect to my Trust to extend credit and make loans, either secured or unsecured.

Q. My Personal Representative with respect to my estate and my Trustees with respect to my Trust to execute partnership agreements, joint venture agreements, and amendments thereto, and to participate in any incorporation, reorganization, sale, liquidation or dissolution of any business or any change in its

nature.

R. My Personal Representative with respect to my estate and my Trustees with respect to my Trust to commingle, hold and administer any property in one or more consolidated funds, or to invest said property in a consolidated fund in which the various investors shall have an individual interest. In the event that the parties serving as Trustees of any trust created hereby shall also act as trustees of a trust or trusts of which (1) the beneficiaries are the same persons named as beneficiaries of the trust created hereby and (2) the terms of the trust instrument or instruments of the other trust or trusts are substantially similar to the terms of the trust instrument or instruments of the other trust created hereby, then my Trustees are hereby authorized to commingle the trust estate of said trust with the trust estate or estate of such other trust or trusts and to administer the combined properties as one trust.

S. My Personal Representative with respect to my estate and my Trustees with respect to my Trust to pay all assessments, subscriptions or other sums of money as my Personal Representatives and Trustees may deem expedient for the protection of the interest of my estate or any trust created hereby as holder of any stocks, bonds, or other securities, and to exercise any options contained herein for the conversion thereof into other securities or to take advantage of any rights to subscribe for additional stocks, bonds, or other securities.

T. My Personal Representative with respect to my estate and my Trustees with respect to my Trust to hold any interest in property in their own name as Personal Representative or Trustees or in the name of a nominee, delegating to the nominee such powers and discretion as my said Personal Representative or Trustees may deem advisable in the interest of my estate or any trust created hereby.

U. No successor Personal Representative or Trustee shall be liable for any act or omission of their predecessor nor shall they be obliged to inquire into the validity or propriety of any such act or omission; any such successor fiduciary shall be entitled to accept as conclusive any accounting and statement of assets furnished to them by their predecessor, and they shall be entitled to receipt only for those assets included in such statement. The foregoing provision shall also apply as between any Personal Representative of my estate and the Trustees of any trust established hereunder.

V. My Trustees with respect to the Trust shall keep and maintain accurate records of all assets and liabilities and of all income and disbursements of any trust created hereby.

W. The receipt of any person entitled to receive property under the terms of my Will or any trust created hereby shall be a sufficient discharge and acquittance of the Personal Representative and Trustees with respect thereto.

X. My Personal Representative and Trustees shall not be personally liable for any obligations of my estate or any trust created hereby, but instead any liability hereunder is limited and confined to the estate or the trust estate itself. A Personal Representative or Trustee shall not be liable for any depreciation or loss, through error of judgment or otherwise, of any property at any time constituting the estate or any trust created hereby or any parts thereof, but shall be liable only for his own acts or omissions in bad faith.

Y. I authorize and empower my Personal Representative and Trustees to make any payment or distribution (required or authorized under this Will) either wholly or partly in kind at market value at date of distribution and to cause any share to be composed of cash, property or undivided fractional interests in property or undivided fractional interests in property different in kind from any other share

(without regard to differences in tax basis of any such property).

Z. If for any reason it is necessary at any time for the proper administration of the estate or any Trust created hereunder that there be a Fiduciary who is a resident of the jurisdiction in which the estate or Trust may be administered, and if at such time there is no Fiduciary who is then such a resident, then I authorize my Personal Representative or Trustees, to appoint a Co-Fiduciary who is such a resident, with unlimited power in my Fiduciary to remove, and to appoint substitutes and successors for, the Co-Fiduciary when the need therefore arises. Said Co-Fiduciary so appointed shall have power to act only with respect to those matters and property which necessitated such appointment, and shall have no other authority.

ARTICLE ELEVEN

Interest in Jointly Owned Property

I hereby confirm my intention that the beneficial interest in all property, real or personal, tangible or intangible (including joint checking or savings accounts in any bank or savings and loan association), which is registered or held, at the time of my death, jointly in the names of myself and any other person (excluding any tenancy in common), shall pass by right of survivorship or operation of law and outside of the terms of this my Last Will and Testament to such other person, if he or she survives me.

ARTICLE TWELVE

Definitions

- A. At the time I execute this Will, I am unmarried and have no children.
- At the time I execute this Will, my brother, **CHAD CLARK**, has one (1) son, **MAX CLARK**. The words "child," "children" and "issue" when used in this Will shall be deemed to include every individual who is born to, or lawfully adopted by his or her parent or who is otherwise descended from such person by any natural or adoptive lines of descent, but the words "child" and "children" shall refer only to descendants in the first degree of descent.
- B. The term "Personal Representative" when used in this Will shall mean an Executor or Administrator as defined under the laws of the state where this Will shall be admitted to probate.

- C. "Health, education, support and maintenance" shall be construed in

such a manner as to be an ascertainable standard for federal estate and gift tax purposes, such that the exercise, release, or lapse of a power which is limited by this standard will not be taxable for federal estate and gift tax purposes. In this regard, "support" and "maintenance" are synonymous, shall not be limited to the bare necessities of life, and shall be the same as "support and maintenance in reasonable comfort". "Education" shall include (but not be limited to) college and professional education. "Health" shall include (but not be limited to) medical, dental, hospital and nursing expenses and expenses of invalidism. Unless expressly indicated to the contrary elsewhere in this instrument, no Trustee shall be required to consider a beneficiary's other readily available resources in making a distribution for such beneficiary's health, education, support and maintenance.

D. "Per stirpes" means by right of representation, and a disposition to any individual and his or her "descendants *per stirpes*" requires that the individual's children, whether or not living at the time of the disposition, be treated as the original stocks and that a further subdivision be made at each succeeding generation.

E. The term "Independent Trustee" shall mean an individual (other than the person by whom such Trustee is appointed) or Corporate Trustee that shall not be related or subordinate (within the meaning of Section 672(c) of the Code) to the individual who is effecting or participating in the removal or appointment of such Trustee.

ARTICLE THIRTEEN

Miscellaneous

A. My Trustees shall be authorized and empowered to collect and receive the proceeds of all life insurance on my life payable to my Trustees hereunder and the receipt of my Trustees for any sum or sums so paid shall be a full and complete discharge to the insurance company or companies with respect thereto.

B. My Trustees may, in their discretion, pay to or for the account of my Personal Representative, out of any assets received by my Trustees, but not constituting a part of my probate estate, such sums as my Personal Representative,

upon its written request, shall certify in writing to be required for the payment of all estate, inheritance, legacy, succession or other taxes lawfully assessed by reason of my death, including any interest and penalties thereon, expenses of administration, and debts; and also to pay to or for the account of my Personal Representative all sums necessary or appropriate to meet any other cash requirements of my estate, to the extent that the readily liquid assets in the hands of my Personal Representative shall not be sufficient for such purpose; and also to purchase and to retain as investments any securities or other property, real or personal, belonging to my estate; and also to make loans to my Personal Representative on such terms as my Trustees deem advisable.

C. Neither the income nor the principal of any trust created hereunder, nor any right thereto, while in the hands of the Trustees and prior to distribution thereof, shall be subject to the debts, contracts, engagements, taxes, guarantees, or otherwise of the beneficiary entitled to such; nor shall the same be liable to execution, attachment, voluntary or involuntary anticipation, encumbrance, alienation, assignment, or any other legal process whatsoever by any creditor or otherwise of said beneficiary.

D. If any trust created under this instrument ever shall have a fair market value of twenty-five thousand dollars (\$25,000) or less, the Trustee may terminate such trust and distribute the trust funds to the persons to whom the Trustee then must or may pay the trust's income, in proportion to their interests in trust income or, if such interests are indefinite, equally to such beneficiaries without regard to their relationship to me. For purposes of this paragraph, any beneficiary entitled to receive support is entitled to receive income.

E. The State of Maryland shall be the original situs of any trust that may arise under the terms of this Last Will and Testament. However, realizing that the domiciles of beneficiaries, changes in the laws relating to trusts and taxation, or other circumstances may make it desirable at some time in the future to shift the situs of any of the trusts that may arise under the terms of this Last

Will and Testament, the Trustee is authorized to remove the situs of any such trust at any time and to any place in its discretion.

F. The validity and construction of this Last Will and Testament shall be determined by the laws of Maryland. This Last Will and Testament, and all trusts created hereunder shall be administered, and the rights of all beneficiaries thereof shall be determined in accordance with the laws of the situs of administration of such trust.

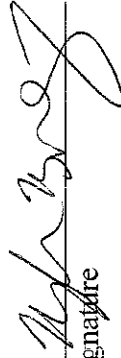
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G. The masculine shall be read in the feminine (and vice versa) and the singular shall be read in the plural (and vice versa) whenever the context of this Will shall plainly so require.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my seal to this my Last Will and Testament to each of the twenty one (21) pages, including the attestation clause, of which I have signed my name in the State of Maryland, this 12th day of February, 2014.


KIMANI CLARK

This instrument, consisting of twenty-one (21) pages including the attestation clause, was signed, sealed and declared in our presence and on the date thereof by the Testator, **KIMANI CLARK**, to be his Last Will and Testament, and we have subscribed our names hereto as witnesses at his request and in his presence and in the presence of each other.


Signature

Megan Bromberg
Print Name

4600 N. Park Ave, Plaza South
Address

Chauy Chase, MD 20815
Address


Signature

Patricia Sonotini
Print Name

4600 N. Park Ave, Plz. South
Address

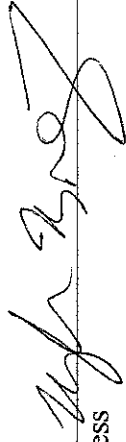
Chauy Chase, MD 20815
Address

I, **KIMANI CLARK**, the testator, sign my name to this instrument this 12th day of February, 2014, and being first duly sworn, do hereby declare to the undersigned authority that I sign and execute this instrument as my will and that I sign it willingly (or willingly direct another to sign for me,) that I execute it as my free and voluntary act for the purposes therein expressed, and that I am eighteen years of age or older, of sound mind, and under no constraint or undue influence.



KIMANI CLARK, Testator

We, Megan Bromberg, and Ratana Sonotrost the witnesses sign our names to this instrument, being first duly sworn, and do hereby declare to the undersigned authority that the testator signs and executes this instrument as his will and that he signs it willingly (or willingly directs another to sign for him,) that he executes it as his free and voluntary act for purposes therein expressed, and that each of us, in the presence and hearing of the testator, hereby signs this will as witness to the testator's signing, and that to the best of our knowledge the testator is eighteen years of age or older, of sound mind, and under no constraint or undue influence.



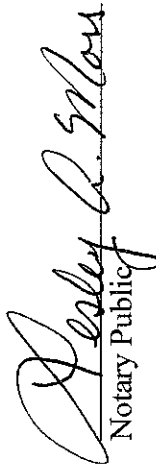
Witness



Witness

STATE OF Maryland
COUNTY OF Montgomery

Subscribed, sworn to and acknowledged before me by **KIMANI CLARK**, the testator, and subscribed and sworn to before me by Megan Bromberg and Ratana Sonotrost, witnesses, this 12th day of February, 2014.



Notary Public

My commission expires:
Notary Seal

